

portions to her younger grandchildren (a); but he also applied it where the settlor was an *uncle*, and this not because he considered the uncle as standing *loco parentis*, but on general * principles (a). "Where," [*392] he said, "a provision is made by a *father* either by will or settlement for younger children, an elder unprovided for shall be deemed a younger, and the ground is that every branch of the family should be provided for, the Court not considering the words elder or younger. The question then is, whether there exists any difference where the settlement is made by a father's brother to a *collateral* relation, a

can, though he had succeeded to the Chisholm estates, was entitled to share in the 10,000*l.* portions, and it was held that he was entitled, and Sir W. P. Wood in delivering judgment, made some important observations. "I should have been glad," he said, "if the doctrine had been confined to the class of cases in which it originated, where a settlor by marriage settlement makes provision for his family generally, limiting the estate to the eldest son in tail, giving the usual powers for jointures and portions (though, even when this is not done, the son might still make any provision he pleased on attaining his majority), and then going on to charge the settled estate in favour of younger children. In such cases it is reasonable enough to regard the limitations for younger children as intended for the benefit not merely of those who happened to be younger children at the time of vesting, but of those who might fill that character when the fund should come into possession. A settlor under such circumstances may fairly be presumed to provide for the whole of his family, and younger children would in such an instrument naturally be taken to mean those who should not otherwise be provided for. But the moment you extend the doctrine to other cases where the provision for younger children is made by some person *in loco*

parentis, not by marriage settlement, but by some independent deed, you have an extremely different case to deal with. When the rule is laid down thus broadly, it includes cases where the effect of it may be to render it impossible, for a second son marrying in his father's lifetime, to make any jointure or settlement, except on a contingency. Still the cases, to whatever extent they may go, have not been carried beyond those where the donor is, if not a parent, at any rate *in loco parentis*. No authority goes so far as to apply the rule to a person, not a relative of those for whom provision is made, and not having any interest in the family estate. But here Sir Thomas Ramsay had nothing to do with the family or the estate." The substantial ground for the Court's decision in this case was that the younger child (who was declared entitled to the portions though he also took the estate) did not take the estate by any title derived from the persons who created the portions. And see *Cooper v. Cooper*, 8 L. R. Ch. App. 813.

(a) *Lord Teynham v. Webb*, 2 Ves. sen. 198; as to a grandfather standing *loco parentis*, see *Farrer v. Barker*, 9 Hare. 737; *Swallow v. Binns*, 1 K. & J. 417.

(a) *Duke v. Doidge*, 2 Ves. sen. 203, note.